

Court No. - 21

Case :- WRIT - C No. - 4882 of 2023

Petitioner :- Smt. Asma Khatoon And Another

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Prabhakar Dwivedi, Balram Jee Verma

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

The petitioner has challenged the order dated 25.6.2022 passed by respondent no. 3 and the recovery citation dated 11.1.2023 issued by respondent no. 5 for recovery of electricity dues in a case of theft of electricity.

Sri C.S. Singh, learned counsel for the respondent Electricity Department on instructions states that the impugned recovery has been withdrawn and that fresh order will be passed after affording opportunity of hearing to the petitioners.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.2.2023

Jaideep/-